LOKPAL AND LOKAYUKTAS

OMBUDSMAN EVOLUTION AND THE → COMPOSITION, SELECTION, SEARCH, TENURE → JURISDICTION MAP: PRIME MINISTER → COMPLAINT-TO-TRIAL CHAIN WITH NATURAL → WINGS, CVC, CBI AND → POWERS, ASSETS, LIMITATION, ATTACHMENT

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

00

STAGE 00 OMBUDSMAN EVOLUTION AND THE STATUTORY ANTI-CORRUPTION DESIGN

OMBUDSMAN EVOLUTION AND THE STATUTORY ANTI-CORRUPTION DESIGN | ROOT QUESTION | HOW CAN HIGH PUBLIC OFFICE BE INVESTIGATED WITHOUT MERGING | 1809 SWEDEN | OMBUDSMAN MODEL. | 1966 FIRST ARC | UNION LOKPAL + STATE LOKAYUKTAS. | 1968 ONWARD

ROOT QUESTION → How can high public office be investigated without merging complaint, police and court? → 1809 Sweden → ombudsman model. → 1966 First ARC → Union Lokpal + State Lokayuktas. → 1968 onward → repeated Bills.

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How can high public office be investigated without merging complaint, police and court?
- 1809 Sweden → ombudsman model.

POWER / PROCEDURE

- 1966 First ARC → Union Lokpal + State Lokayuktas.
- 1968 onward → repeated Bills.
- 2013 Act → assent 1 January 2014 → commencement 16 January 2014.

CHECK / LIMIT

- LEGAL IDENTITY statutory
- Union institution
- no general suo-motu route.

FEDERAL / RIGHTS IMPACT

- CORE DISTINCTION
- Lokpal directs a legal process; the Special Court decides criminal guilt.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The long legislative history shows a recurring design conflict: how to create an institution strong enough to scrutinise high public office without merging complainant, investigator, prosecutor and judge.

01

STAGE 01 COMPOSITION, SELECTION, SEARCH, TENURE AND REMOVAL LIFECYCLE

COMPOSITION, SELECTION, SEARCH, TENURE AND REMOVAL LIFECYCLE | CHAIRPERSON + NOT MORE THAN EIGHT MEMBERS. | 50% OF MEMBERS JUDICIAL | AT LEAST 50% OF MEMBERS FROM NAMED SOCIAL CATEGORIES. | SELECTION COMMITTEE | LOK SABHA SPEAKER | LOK SABHA LOP | CJI OR NOMINEE

50% of Members judicial	at least 50% of Members from named social categories.
TENURE five years or age seventy, whichever earlier	no reappointment.

CONSTITUTIONAL BASIS / ARTICLE

- Chairperson + not more than eight Members.
- 50% of Members judicial
- at least 50% of Members from named social categories.
- SELECTION COMMITTEE

POWER / PROCEDURE

- Lok Sabha Speaker
- Lok Sabha LoP
- CJI or nominee
- eminent jurist.

CHECK / LIMIT

- SEARCH COMMITTEE assists with a panel; it does not appoint and its panel is not the final decision.
- TENURE five years or age seventy, whichever earlier
- no reappointment.
- President + Supreme Court inquiry for misbehaviour; statutory direct grounds are separate.

FEDERAL / RIGHTS IMPACT

- Common Cause v. Union of India (2017) vacancy did not make the Act unworkable or create a substitute committee seat.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Lokpal appointments follow the statutory Selection and Search Committees, so political substitutions cannot be assumed beyond the Act's text.

02

STAGE 02 JURISDICTION MAP: PRIME MINISTER, MPS, OFFICIALS AND COVERED ENTITIES

JURISDICTION MAP | PRIME MINISTER, MPS, OFFICIALS AND COVERED ENTITIES | PERSONAL REACH | UNION MINISTERS | GROUPS A-D | SPECIFIED FINANCED/FOREIGN-FUNDED ENTITIES. | PM FILTER EXCLUDED SUBJECTS | INTERNATIONAL RELATIONS

PERSONAL REACH

Union Ministers → Groups A-D → specified financed/foreign-funded entities.

CONSTITUTIONAL BASIS / ARTICLE

- PERSONAL REACH
- Union Ministers
- Groups A-D
- specified financed/foreign-funded entities.

POWER / PROCEDURE

- PM FILTER excluded subjects: international relations
- external/internal security
- public order atomic energy
- Full bench + at least two-thirds approval

CHECK / LIMIT

- in-camera inquiry
- record controls.
- MP FIREWALL speech or vote protected by Article 105(2) is outside the statutory route.
- Sita Soren (2024) v. Union of India legislative bribery is not constitutionally immunised merely because it relates to a vote.

FEDERAL / RIGHTS IMPACT

- TRAP wide personal jurisdiction != unrestricted subject-matter jurisdiction.

MECHANISM / VERDICT — Sita Soren (2024) v. Union of India legislative bribery is not constitutionally immunised merely because it relates to a vote.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 14(3) can reach another person involved in abetting, bribe giving, bribe taking or conspiracy connected with a corruption allegation against a covered person, subject to State consent where the person serves State affairs.

03

STAGE 03 COMPLAINT-TO-TRIAL CHAIN WITH NATURAL JUSTICE AND STATUTORY TIMELINES

COMPLAINT-TO-TRIAL CHAIN WITH NATURAL JUSTICE AND STATUTORY TIMELINES | PRESCRIBED COMPLAINT IDENTITY + FORM + ALLEGATION + SUPPORTING | REGISTRY SCRUTINY | LOKPAL CHOICE PRELIMINARY INQUIRY | DIRECT INVESTIGATION | IN-LIMINE CLOSURE WITHIN LEGAL BOUNDS. | PRELIMINARY INQUIRY PRIMA FACIE SCREEN | PUBLIC-SERVANT HEARING

PRESCRIBED COMPLAINT identity + form + allegation + supporting material → Registry scrutiny. → LOKPAL CHOICE preliminary inquiry → direct investigation → in-limine closure within legal bounds. → PRELIMINARY INQUIRY prima facie screen → public-servant hearing → report ordinarily within ninety days with

CONSTITUTIONAL BASIS / ARTICLE

- PRESCRIBED COMPLAINT identity + form + allegation + supporting material → Registry scrutiny.
- LOKPAL CHOICE preliminary inquiry
- direct investigation

POWER / PROCEDURE

- in-limine closure within legal bounds.
- PRELIMINARY INQUIRY prima facie screen → public-servant hearing → report ordinarily within ninety days with recorded extension.
- INVESTIGATION evidence collection → report ordinarily within six months with recorded extensions.

CHECK / LIMIT

- THREE-MEMBER BENCH closure
- departmental action
- sanction/prosecution route.

FEDERAL / RIGHTS IMPACT

- END POINT
- Prosecution Wing or agency → Special Court → conviction or acquittal.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 21 protects a person other than the accused whose conduct is examined or reputation is likely to be prejudicially affected, by requiring a reasonable opportunity of hearing and defence evidence.

04

STAGE 04 WINGS, CVC, CBI AND SUPERINTENDENCE WITHOUT INSTITUTIONAL MERGER

WINGS, CVC, CBI AND SUPERINTENDENCE WITHOUT INSTITUTIONAL MERGER | INQUIRY WING PRELIMINARY INQUIRY AND PRIMA FACIE ASSESSMENT. | PROSECUTION WING FILES AND CONDUCTS PROSECUTION WHEN LOKPAL DIRECTS. | CVC ROUTE SPECIFIED GROUPS A-D PRELIMINARY-INQUIRY CATEGORIES UNDER THE | DSPE ROUTE CRIMINAL INVESTIGATION; LOKPAL SUPERINTENDENCE IS CONFINED TO | INVESTIGATING-OFFICER TRANSFER IN A REFERRED MATTER NEEDS LOKPAL APPROVAL. | GRIEVANCE DISTINCT ENTRY TESTS AND OUTPUTS; NO AUTOMATIC JURISDICTIONAL | LIMIT SUPERINTENDENCE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
INQUIRY WING preliminary inquiry and prima facie assessment.	CVC ROUTE specified Groups A-D preliminary-inquiry categories under the statutory distribution.	Investigating-officer transfer in a referred matter needs Lokpal approval.	LIMIT superintendence != power to dictate a predetermined investigative result.
PROSECUTION WING files and conducts prosecution when Lokpal directs.	CBI / DSPE ROUTE criminal investigation; Lokpal superintendence is confined to Lokpal-referred matters.	VIGILANCE / WHISTLEBLOWER / GRIEVANCE distinct entry tests and outputs; no automatic jurisdictional substitution.	INQUIRY WING preliminary inquiry and prima facie assessment.

CONSTITUTIONAL BASIS / ARTICLE

- INQUIRY WING preliminary inquiry and prima facie assessment.
- PROSECUTION WING files and conducts prosecution when Lokpal directs.

POWER / PROCEDURE

- CVC ROUTE specified Groups A-D preliminary-inquiry categories under the statutory distribution.
- CBI / DSPE ROUTE criminal investigation; Lokpal superintendence is confined to Lokpal-referred matters.

CHECK / LIMIT

- Investigating-officer transfer in a referred matter needs Lokpal approval.
- VIGILANCE / WHISTLEBLOWER / GRIEVANCE distinct entry tests and outputs; no automatic jurisdictional substitution.

FEDERAL / RIGHTS IMPACT

- LIMIT superintendence != power to dictate a predetermined investigative result.
- INQUIRY WING preliminary inquiry and prima facie assessment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Lokpal eligibility combines judicial routes with a non-judicial expertise route, balancing adjudicatory competence with wider public-administration experience.

05

STAGE 05 POWERS, ASSETS, LIMITATION, ATTACHMENT AND SPECIAL COURT CONTROL

POWERS, ASSETS, LIMITATION, ATTACHMENT AND SPECIAL COURT CONTROL | PROCESS POWERS SEARCH/SEIZURE | CIVIL-COURT POWERS | PROVISIONAL ATTACHMENT | PROSECUTION SANCTION. | ATTACHMENT RECORDED REASONS + SUSPECTED CORRUPTION PROCEEDS + MAXIMUM | MATERIAL SENT TO SPECIAL COURT | CONFIRMATION, REFUSAL OR LATER RESTORATION.

PROCESS POWERS search/seizure → civil-court powers → provisional attachment → prosecution sanction. → ATTACHMENT recorded reasons + suspected corruption proceeds + maximum ninety-day provisional order

CONSTITUTIONAL BASIS / ARTICLE

- PROCESS POWERS search/seizure
- civil-court powers
- provisional attachment

POWER / PROCEDURE

- prosecution sanction.
- ATTACHMENT recorded reasons + suspected corruption proceeds + maximum ninety-day provisional order
- material sent to Special Court → confirmation, refusal or later restoration.

CHECK / LIMIT

- SECTION 44
- 2016 substitution → assets/liabilities in prescribed form and manner.
- Checked official material did not yield a later fresh replacement form-and-manner rule.

FEDERAL / RIGHTS IMPACT

- LIMITATION complaint barred after seven years from the alleged offence.
- FALSE COMPLAINT statutory safeguard requires legal proof: it must not deter bona fide disclosures.
- Lok Prahari v. Union of India (2018) electoral disclosure case; it did not restore the pre-2016 Lokpal return format.

MECHANISM / VERDICT — LIMITATION complaint barred after seven years from the alleged offence.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 29 permits provisional attachment for up to ninety days where recorded reasons and material support belief about proceeds of corruption and risk of concealment/transfer.

06

STAGE 06 LOKAYUKTAS: STATE-LAW VARIATION INSIDE A COMMON FEDERAL OBJECTIVE

STATE-LAW VARIATION INSIDE A COMMON FEDERAL OBJECTIVE | SECTION 63 EACH STATE SHALL ESTABLISH A LOKAYUKTA BY | VARIATION AXES SINGLE/MEMBER BODY | SELECTION PANEL | SUO-MOTU POWER MINISTER COVERAGE | INVESTIGATION SUPPORT | RECOMMENDATION/ENFORCEMENT ROUTE. | DO NOT UNIVERSALISE ONE STATE'S GOVERNOR PANEL, AGE, TERM

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
SECTION 63 each State shall establish a Lokayukta by State law.	suo-motu power minister coverage	DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.	FEDERAL RISK uneven minimum protection, vacancies and dependence on State agencies.
VARIATION AXES single/member body	investigation support	FEDERAL GAIN	REFORM model baseline + State autonomy + transparent appointments + public follow-up.
selection panel	recommendation/enforcement route.	State adaptation and experimentation.	

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 63 each State shall establish a Lokayukta by State law.
- VARIATION AXES single/member body
- selection panel

POWER / PROCEDURE

- suo-motu power minister coverage
- investigation support
- recommendation/enforcement route.

CHECK / LIMIT

- DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.
- FEDERAL GAIN
- State adaptation and experimentation.

FEDERAL / RIGHTS IMPACT

- FEDERAL RISK uneven minimum protection, vacancies and dependence on State agencies.
- REFORM model baseline + State autonomy + transparent appointments + public follow-up.

MECHANISM / VERDICT — DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 63 does not prescribe a uniform national composition, selection panel, jurisdiction, tenure, removal process, investigation wing, binding force or Upalokayukta model.

07

STAGE 07 CASES, INDEPENDENCE DEFICITS, ACCOUNTABILITY CONTROLS AND REFORM PRIORITIES

CASES, INDEPENDENCE DEFICITS, ACCOUNTABILITY CONTROLS AND REFORM PRIORITIES | CASE SPINE | COMMON CAUSE V. UNION OF INDIA (2017) | APPOINTMENT CANNOT BE BLOCKED BY COMMITTEE VACANCY. | LOK PRAHARI V. UNION OF INDIA (2018) | ELECTORAL DISCLOSURE, NOT SECTION 44 RULEMAKING. | SITA SOREN (2024) V. UNION OF INDIA | BRIBERY OUTSIDE LEGISLATIVE PRIVILEGE IMMUNITY.

CONSTITUTIONAL BASIS / ARTICLE

- CASE SPINE
- Common Cause v. Union of India (2017) → appointment cannot be blocked by committee vacancy.
- Lok Prahari v. Union of India (2018) → electoral disclosure, not section 44 rulemaking.
- Sita Soren (2024) v. Union of India → bribery outside legislative privilege immunity.

POWER / PROCEDURE

- 2025 HIGH COURT-JUDGE ISSUE
- Supreme Court stay is interlocutory control; jurisdiction is not finally expanded.
- INDEPENDENCE RISKS executive weight in selection
- agency reliance

CHECK / LIMIT

- opaque closure
- capacity gaps.
- ACCOUNTABILITY CONTROLS reasons
- judicial review

FEDERAL / RIGHTS IMPACT

- Special Court
- removal safeguards.
- REFORM timely vacancies + clear section 44 rules + interoperable tracking + reasoned publication.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Public status information and annual reports support accountability, while complainant/public-servant confidentiality and PM in-camera rules protect fairness.

08

STAGE 08 UPSC TRAPS, PYQ ROUTE AND QUALIFIED ANSWER SYNTHESIS

UPSC TRAPS, PYQ ROUTE AND QUALIFIED ANSWER SYNTHESIS | PRELIMS FIREWALL STATUTORY, NOT CONSTITUTIONAL | MAXIMUM EIGHT MEMBERS | PM INCLUDED WITH FILTERS SPEECH/VOTE EXCLUSION | NO GENERAL SUO-MOTU POWER | SEVEN-YEAR LIMITATION REFERRED-CASE CBI SUPERINTENDENCE ONLY | LOKAYUKTA DESIGN VARIES. | 2025 PRELIMS ROUTE JURISDICTION + COMPOSITION

PRELIMS FIREWALL statutory, not constitutional → maximum eight Members → PM included with filters speech/vote exclusion → no general suo-motu power → seven-year limitation referred-case CBI superintendence only

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS FIREWALL statutory, not constitutional
- maximum eight Members
- PM included with filters speech/vote exclusion

POWER / PROCEDURE

- no general suo-motu power
- seven-year limitation referred-case CBI superintendence only
- Lokayukta design varies.

CHECK / LIMIT

- 2025 PRELIMS ROUTE jurisdiction + composition → test percentage denominator, PM safeguards and privilege.
- MAINS SPINE ombudsman evolution → legal identity → composition/independence
- jurisdiction → complaint-to-court process → agency interfaces

FEDERAL / RIGHTS IMPACT

- powers and safeguards → State variation → capacity reform.
- Lokpal has real process powers, but credibility depends on appointments, agency autonomy, reasoned transparency and court-controlled legality rather
- than institutional mythology.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 37 protects Lokpal tenure through a special judicial-reference route for misbehaviour, while allowing direct presidential removal on separately listed incapacity grounds.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT | PART A — BACKGROUND | PART B — LOKPAL (CENTRE) | PART C — LOKAYUKTAS (STATES) | OMBUDSMAN FIRST CREATED IN SWEDEN (1809) ; INDIA'S VERSION | ARC KEPT THE JUDICIARY OUTSIDE LOKPAL'S PURVIEW (LIKE NEW | TEN BILLS INTRODUCED (1968 | DEC 2011) BEFORE THE LAW FINALLY PASSED

OPTIONAL DOCTRINE / CASE

- PART A — BACKGROUND
- PART B — LOKPAL (Centre)
- PART C — LOKAYUKTAS (States)
- Ombudsman first created in Sweden (1809) ; India's version recommended by the First ARC (1966–70) →

ADVANCED LIMIT

- ARC kept the judiciary outside Lokpal's purview (like New Zealand; unlike Sweden).
- Ten bills introduced (1968 → Dec 2011) before the law finally passed → Lokpal and Lokayuktas Act, 2013
- Power of superintendence & direction over any agency incl. the CBI for referred cases.
- Timelines: preliminary enquiry 3 (+3) months; investigation 6 (+6); trial 1 (+1) yr via special courts .

COMPARATIVE NUANCE

- Can attach/confiscate corruptly-acquired property; grants sanction for prosecution ; PC-Act max
- First established in Maharashtra (1971) (Odisha enacted 1970 but enforced 1983).
- The 2013 Act required states to establish Lokayuktas by state law and left the
- NOT: Lokpal is a constitutional body → statutory (2013 Act) .

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels